

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR DECEMBER 30, 2025
DEPARTMENT 38
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1A. **P22-01958** **ESTATE OF ARLINE TEDESCHI**
9:00 AM HEARING IN RE: FIRST AMENDED CONTEST AND GROUNDS OF OBJECTION TO PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT; PETITION TO CONTEST TRUST FOR UNDUE INFLUENCE; FOR CONSTRUCTIVE FRAUD; FOR CONSTRUCTIVE TRUST; TO PRECLUDE USE OF TRUST FUNDS; AND FOR ORDER FOR PARTIAL DISTRIBUTION FILED ON 01/16/24 BY GLORIA
--see also line # 8--
Need:
1. Appearances to report status, including discovery
2. Proof of Personal Service of Summons on Robert M. Slattery, Placer County Chapter of the SPCA, and San Francisco Burn Center. PrC §§ 8250, 8271
Notes:
a. Objections by Beneficiaries Leah Slattery, Robert D. Slattery, and Meredith Donahue filed 1-22-2024.
b. Paulette Slattery's Response and Objection filed 3-28-2024.
c. Response and Objection of Paulette Slattery filed 5-13-2024.

1B. **P22-01958** **ESTATE OF ARLINE TEDESCHI**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY WITH IAEA FILED ON 12/01/22 BY PAULETTE SLATTERY
Need appearances to report status, including discovery

1C. **P22-01958** **ESTATE OF ARLINE TEDESCHI**
9:00 AM HEARING IN RE: APPEARANCES: ATTORNEY ALICIA GAMEZ APPEARS ON BEHALF OF PETITIONER. ATTORNEY KEVIN RODRIQUEZ APPEARS ON BEHALF OF PAULETTE SLATTERY. PROCEEDINGS: BOTH COUNSEL REQUESTS A CONTINUANCE. COUNSEL WILL FILE A STIPULATION AND ORDER TO ADVANCE HEARING TO BEFORE THANKSGIVING.
Drop. Calendared in error.

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1D. 9:00 AM	P22-01958 ESTATE OF ARLINE TEDESCHI HEARING IN RE: APPEARANCES: ATTORNEY ALICIA GAMEZ APPEARS ON BEHALF OF PETITIONER. ATTORNEY KEVIN RODRIQUEZ APPEARS ON BEHALF OF PAULETTE SLATTERY. PROCEEDINGS: BOTH COUNSEL REQUESTS A CONTINUANCE. COUNSEL WILL FILE A STIPULATION AND ORDER TO ADVANCE HEARING TO BEFORE THANKSGIVING. Drop. Calendared in error.
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5. 9:00 AM	P23-01092 ESTATE OF: RICHARD MENCHACA HEARING IN RE: WAIVER OF ACCOUNT, PETITION FINAL DISTRIBUTION, ALLOWANCE OF COMPENSATION FILED ON 08/11/25 BY JOSEPH MENCHACA Need: 1. Appearances 2. Inventory and Appraisal, form DE-160, that is complete at item 5, and includes appraisal by assigned referee 3. Verified declaration by petitioner to state how remaining \$4,000.00 of attorney fees will be paid. Estate assets do not include cash. 4. Verified declaration by petitioner to specify whether all charges for legal advertising, probate referee's services and costs of administration have been paid. LR 7.317 5. Proposed Order Notes: a. Notes are subject to change once the Inventory and Appraisal is filed.
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6. 9:00 AM	P23-01255 ESTATE OF: BOBBIE STUART HEARING IN RE: STATUS REPORT OF ADMINISTRATION AND REQUEST FOR CONTINUED ADMINISTRATION FILED BY CHRISTINE E STUART-GILL ON 08/08/2025 Need appearances
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7. 9:00 AM	P23-01308 MATTER OF: RICHARD N. DODGE FAMILY TRUST HEARING IN RE: PROVE-UP HEARING ON ATTORNEY'S FEES FROM 3/20/25 ORDER AFTER HEARING
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Need:

1. Appearances
2. Proposed Order

Notes:

- a. Motion for Attorney's Fees Against Ronald Dodge filed 10/08/25 by Jade Dodge, set 03/10/26

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8A. 9:00 AM	P23-01338 MATTER OF: TEDESCHI FAMILY TRUST DATED JULY 15, 2015 HEARING IN RE: DEMURRER TO THIRD AMENDED PETITION TO CONTEST TRUST FOR UNDUE INFLUENCE FILED BY PAULETTE SLATTERY ON 8/7/25 Need: Appearances	--see also lines # 1--
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8B. 9:00 AM	P23-01338 MATTER OF: TEDESCHI FAMILY TRUST DATED JULY 15, 2015 HEARING IN RE: THIRD AMENDED PETITION TO CONTEST TRUST FOR UNDUE INFLUENCE; FOR FINANCIAL ELDER ABUSE; CONTEST AND GROUNDS OF OBJECTION TO PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT; FOR A FINDING OF VIOLATION OF NO CONTEST CLAUSE; FOR CONSTRUCTIVE FRAUD; FOR CONSTRUCTIVE TRUST; TO PRECLUDE USE OF TRUST FUNDS FILED ON 4-28-25 BY GLORIA SCOLARI Need: 1. Appearances 2. Proposed Order Notes: a. Caption includes "Contest and Grounds of Objection to Petition for Probate of Will..." b. This file was opened as a trust case. This estate would have to be filed in its own case number as a separate <i>in rem</i> proceeding. c. Response and Objection filed 07/29/25 by Paulette Slattery
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8C. 9:00 AM	P23-01338 MATTER OF: TEDESCHI FAMILY TRUST DATED JULY 15, 2015 HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY WITH IAEA FILED ON 12/01/22 BY PAULETTE SLATTERY Drop. Calendared in this case in error. See line 1B.
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8D. 9:00 AM	P23-01338 MATTER OF: TEDESCHI FAMILY TRUST DATED JULY 15, 2015 HEARING IN RE: FIRST AMENDED CONTEST AND GROUNDS OF OBJECTION TO PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT; PETITION TO CONTEST TRUST FOR UNDUE INFLUENCE; FOR CONSTRUCTIVE FRAUD; FOR CONSTRUCTIVE TRUST; TO PRECLUDE USE OF TRUST FUNDS; AND FOR ORDER FOR PARTIAL DISTRIBUTION FILED ON 01/16/24 BY GLORIA
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Drop. Calendared in this case in error. See line 1A.

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12A. 9:00 AM	P25-00465 ESTATE OF: ESTEBAN CUBILLAS HEARING IN RE: VERIFIED PETITION TO DETERMINE OWNERSHIP OF REAL PROPERTY FILED BY MARIA CASTILLO DE CUBILLAS ON 08/19/2025 Need: 1. Appearances 2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2) 3. Proposed Order Notes: a. Stipulation and Order to Approve the Order re Petitioner's Community Property Interest in Real Property filed 11/19/25
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12B. 9:00 AM	P25-00465 ESTATE OF: ESTEBAN CUBILLAS HEARING IN RE: MOTION TO CONSOLIDATE FILED ON 8-22-25 BY MARIA & ALLISON CUBILLAS Need: Appearances
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12C. 9:00 AM	P25-00465 ESTATE OF: ESTEBAN CUBILLAS HEARING IN RE: SPOUSAL PROPERTY PETITION FILED BY MARIA CASTILLO DE CUBILLAS ON 4-29-25 Drop. Spousal Property Order Filed 12/09/25
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12D. 9:00 AM	P25-00465 ESTATE OF: ESTEBAN CUBILLAS HEARING IN RE: PETITION FOR ORDER FOR REMOVAL OF PERSONAL REPRESENTATIVE AND APPOINTMENT OF SUCCESSOR PERSONAL REPRESENTATIVE, ALLISON CUBILLAS FILED ON 7-17-25 BY ALLISON CUBILLAS Need: 1. Appearances 2. Verified declaration by petitioner to include spouse and son Franco as persons entitled to receive notice so court can confirm mailing 3. Proof of personal service of Citation on personal representative. PrC § 8500(b) 4. Petition for Probate Form DE-111 filed as a Supplement 5. Proposed Order Form DE-140, re appointment of new administrator. Notes: a. Per Stipulation and Order filed 11/19/25, Petitioner shall dismiss this Petition. To date, Request for Dismissal has not been received.
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12E. 9:00 AM	P25-00465 ESTATE OF: ESTEBAN CUBILLAS HEARING IN RE: PETITION FOR APPINTMENT OF GAL FILED ON 07/21/25 BY MARIA CASTILLO DE CUBILLAS Drop. Guardian Ad Litem appointed at the 09/18/25 hearing
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17. **P25-00513** **ESTATE OF: GONZALO LEONGUERRERO**
9:00 AM HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/AIEA FILED ON 3-25-25 BY LUKE LEON GUERRERO

Need:

1. Appearances
2. Verified declaration by petitioner to complete Petition item 2.d, regarding bond.
3. Verified declaration by petitioner to complete Petition item 3e, if needed per above
4. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
PrC § 8100; LR 7.151(e)

Notes:

- a. Letters of Special Administration issued to Luke Leonguerrero expire 05/29/2026

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18.	P25-01391	MATTER OF: THE GLENDON M. BENSON AND JANET A. BENSON REVOCABLE FAMILY TRUST DATED OCTOBER 15, 1999
9:00 AM	HEARING IN RE: PETITION TO ALLOW MODIFICATION OF TRUST FILED ON 08/07/25 BY JANET A. BENSON	
	Need appearances	

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19. 9:00 AM	P25-01407 IN THE MATTER OF: THE RALPH TORRANO POOLED SPECIAL NEEDS TRUST HEARING IN RE: PETITION FOR ORDER DIRECTING ESTABLISHMENT OF POOLED SPECIAL NEEDS TRUST, EXPANDING TRUST INVESTMENT AUTHORITY, SETTING BOND, FEES FILED ON 08/11/25 BY DENEER BERLINER
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Need:

1. Appearances
2. Proposed Order

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20.

9:00 AM

P25-02082

ESTATE OF YUKIHARU TANAKA

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA, FILED 11/19/25 BY JULIE MENACK

Need:

1. Proof of Publication. PrC § 8120
2. Proof of mailing Notice of Petition to Administer Estate and copy of petition to all heirs and beneficiaries. PrC § 8110; LR 7.151(e). The Notice of Petition to Administer Estate that was filed 11/20/26 gave notice for a 03/18/26 hearing.
3. Verified declaration by petitioner to complete Petition at item 2.d regarding Bond.